

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Schiavo	Team: Team # 4	CCRB Case #: 201116371	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/15/2011 11:10 PM	Location of Incident: Foster Avenue and Seton Place	18 Mo. SOL 6/15/2013	Precinct: 70		
Date/Time CV Reported Fri, 12/16/2011 12:42 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/22/2011 2:50 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Winston Willabus	03104	935969	070 PCT
2. POF Stacey Robinson	18684	933266	070 PCT
3. POM Jonmichel Lobosco	30245	940384	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Winston Willabus	Abuse: Sgt. Winston Willabus supervised the stop of the car in which § 87(2)(b) and an individual were occupants.	A . Unsubstantiated
B . POF Stacey Robinson	Force: PO Stacey Robinson used physical force against § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . POF Stacey Robinson	Discourtesy: PO Stacey Robinson spoke obscenely to § 87(2)(b)	C . Unsubstantiated
D . POF Stacey Robinson	Abuse: PO Stacey Robinson frisked § 87(2)(b) and an individual.	D . Unsubstantiated
E . POF Stacey Robinson	Abuse: PO Stacey Robinson searched § 87(2)(b) and an individual.	E . Unsubstantiated
F . POF Stacey Robinson	Abuse: PO Stacey Robinson threatened to arrest § 87(2)(b)	F . Unsubstantiated
G . SGT Winston Willabus	Abuse: Sgt. Winston Willabus supervised the search of the car in which § 87(2)(b) and an individual were occupants.	G . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On December 16, 2011, § 87(2)(b) filed a complaint via telephone with Sgt. Clive Caplan from IAB Group 54 on behalf of himself, § 87(2)(b) and an individual named § 87(2)(b) whose last name he did not know. This generated log #11-58597 (encl. 8-9), which was received by the CCRB on December 22, 2011 (encl. 10-11). On December 15, 2011 at approximately 11:10 p.m., § 87(2)(b) and § 87(2)(b) were driving in § 87(2)(b)'s vehicle near Foster Avenue and Seton Place in Brooklyn. They were stopped by Sgt. Winston Willabus and PO Stacey Robinson of the 70th Precinct. The following allegations resulted from the officers' actions:

- **Allegation A – Abuse of Authority:** Sgt. Winston Willabus supervised the stop of the car in which § 87(2)(b) and an individual were occupants.
- **Allegation B – Force:** PO Stacey Robinson used physical force against § 87(2)(b) and § 87(2)(b).
- **Allegation C – Discourtesy:** PO Stacey Robinson spoke obscenely to § 87(2)(b).
- **Allegation D – Abuse of Authority:** PO Stacey Robinson frisked § 87(2)(b) and an individual.
- **Allegation E – Abuse of Authority:** PO Stacey Robinson searched § 87(2)(b) and an individual.
- **Allegation F – Abuse of Authority:** PO Stacey Robinson threatened to arrest § 87(2)(b).
- **Allegation G – Abuse of Authority:** Sgt. Winston Willabus supervised the search of the car in which § 87(2)(b) and an individual were occupants. § 87(2)(g).
- § 87(2)(g), § 87(4-b)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) is a § 87(2)(b) white male who is § 87(2)(b) § 87(2)(b), and has brown hair and brown eyes.

CCRB Testimony

On December 16, 2011, § 87(2)(b) provided an initial statement to Sgt. Caplan of IAB (encl. 8-9). On December 27, 2011, he provided a phone statement (encl. 12), and he was interviewed at the CCRB on January 30, 2012 (encl. 13-17). § 87(2)(g)

On December 15, 2011 at 11:10 p.m., § 87(2)(b) and § 87(2)(b) whose last name he did not know, were passengers in § 87(2)(b)'s vehicle, which § 87(2)(b) was driving in the vicinity of Foster Avenue and Seton Place in Brooklyn. § 87(2)(b) was in the front seat, § 87(2)(b) was in the rear passenger seat, and § 87(2)(b) sat behind the driver. § 87(2)(b) observed that one of his relatives, identified by the CCRB as § 87(2)(b) was being arrested at the location. No one in the car said anything or interjected themselves into the arrest process. § 87(2)(b) circled the block and returned approximately five minutes later. § 87(2)(b) had been transported from the scene and his vehicle was gone. Because § 87(2)(b) and his vehicle were gone, § 87(2)(b) did not stop and continued to drive.

As § 87(2)(b) drove through an intersection about half a block away, a marked RMP occupied by two uniformed officers pulled him over. § 87(2)(b)'s car's windows are not tinted and § 87(2)(b) had not committed any traffic violations. An officer, described as a black female in her 30s who is 5'9"-5'10" tall with a stocky build, and who was identified through the investigation as PO Stacey Robinson of the 70th Precinct, approached the passenger side of the car. A black male officer in his 40s who is 6'2"-6'3" tall, had a heavy build, short hair, and sergeant stripes on his arm, and who was identified through the investigation as Sgt. Winston Willabus of the 70th Precinct, approached the driver's side. Sgt. Willabus asked § 87(2)(b) for his license. § 87(2)(b) did not have his license, so Sgt. Willabus asked him to exit the vehicle. PO Robinson took him to the back of the vehicle. She "frisked" § 87(2)(b). As she did so, he informed her that he had just had surgery. At that point, PO Robinson kicked § 87(2)(b) causing him to scream in pain.

§ 87(2)(b) put his hands on the headrest of the seat in front of him. Neither he nor anyone else made any sudden movements or reached for anything. An unidentified officer, PO3, arrived in an unmarked vehicle by himself. PO3 was a 28-year-old white male who was 5'9" tall, weighed about 160 pounds, and had blond hair. PO Robinson asked § 87(2)(b) to step out of the vehicle and then brought him to the trunk. § 87(2)(b) turned around and saw PO Robinson pull § 87(2)(b)'s boxers above his pants. At PO Robinson's request, § 87(2)(b) and then § 87(2)(b) exited the vehicle.

At the rear of the car, PO Robinson felt the outsides of § 87(2)(b)'s pockets. § 87(2)(b) took his wallet and cell phone out of his pockets and showed them to her. PO Robinson placed her hands into the small pockets in the front of his jeans, but did not feel anything. She pulled up § 87(2)(b)'s boxers from outside his pants and grabbed his testicles and penis from outside his pants 12-15 times, causing a wedgie. § 87(2)(b) did not see the manner in which the other occupants were frisked; he assumed they were all frisked the same way because he observed PO Robinson do the same action to § 87(2)(b) as she did to him. § 87(2)(b) asked PO Robinson why she was doing this. She told him to shut up or he would be arrested. PO Robinson pulled § 87(2)(b)'s pants down a few inches and pulled his boxers up 12-15 times. PO Robinson and Sgt. Willabus then searched the interior of § 87(2)(b)'s vehicle, excluding the trunk. § 87(2)(b) did not receive a summons. § 87(2)(b) and § 87(2)(b) produced their identifications, but none of the officers wrote down any of the information.

Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b), is a § 87(2)(b) white male who is § 87(2)(b), and has brown hair and brown eyes.

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on January 30, 2012 (encl. 18-22). He corroborated § 87(2)(b)'s account of the beginning of the incident. PO Robinson approached the driver's side and Sgt. Willabus approached the passenger side of § 87(2)(b)'s car. PO Robinson asked where the drugs were. When § 87(2)(b) told her that he did not have his license, she asked him to step out of the vehicle and spoke with him near the trunk. § 87(2)(b) was unable to see the interaction between PO Robinson and § 87(2)(b). § 87(2)(b) told PO Robinson that § 87(2)(b) had just had surgery on his knee, at which point she kicked § 87(2)(b)'s legs apart. After all the occupants exited the vehicle, an unmarked black Impala occupied by PO3, a black male, and PO4, a white male with light hair, arrived.

PO Robinson felt the outside of § 87(2)(b)'s clothing and then placed her hands inside of his jeans and North Face jacket pockets, removing all the items. § 87(2)(b) had his wallet in his front left jeans pocket, chap stick in his front right jeans pockets, black sunflower seeds in his back right jeans pocket, and a set of keys in his left jacket pocket. PO Robinson grabbed § 87(2)(b)'s penis and testicles from the outside of his pants. She also pulled § 87(2)(b)'s boxers up five to six times, causing a wedgie. § 87(2)(b) considered this to be sexual harassment. § 87(2)(g) PO Robinson did the same thing to the other three occupants. PO3 and PO4 did not interact with the civilians. § 87(2)(b) presented his identification and a PBA card to Sgt. Willabus, but he did not remember whether the officers wrote down his information. PO Robinson and Sgt. Willabus also searched the interior of § 87(2)(b)'s vehicle.

Victim: § 87(2)(b)

- § 87(2)(b) whose occupation is unknown, is a § 87(2)(b) white male who is § 87(2)(b), and has brown hair and brown eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on March 6, 2012 (encl. 23-27). When § 87(2)(b) drove past the corner of Foster Avenue and Seton Place in Brooklyn, § 87(2)(b) pointed out that his relative, identified as § 87(2)(b) was being arrested. § 87(2)(b) did not stop his car or interact with any officers. § 87(2)(b) asked § 87(2)(b) to make a U-turn so they could see what happened and perhaps take § 87(2)(b)'s car. § 87(2)(b) drove around the block and returned to the area of the arrest three to four minutes later. When he returned, § 87(2)(b) and his vehicle were gone. A marked RMP immediately made a U-turn and stopped § 87(2)(b)'s vehicle. § 87(2)(b) had not committed any traffic violations and his windows are not tinted.

PO Robinson approached the driver's side and screamed for him to exit the car. § 87(2)(b) asked to retrieve his cane from the backseat, but PO Robinson refused this request. § 87(2)(b) exited the vehicle and walked slowly because he was recovering from surgery. PO Robinson pushed him to get him to move more quickly. § 87(2)(b) screamed in pain, and PO Robinson told him to "shut the fuck up." § 87(2)(b) placed his hands against the trunk, at which point PO Robinson kicked his feet to spread them apart. § 87(2)(b) screamed in pain and told PO Robinson to just arrest him. She repeated, "Shut the fuck up."

Two unidentified plainclothes officers, PO3 (30-year-old white male, 5'9"-5'10", 170-180 pounds, short blond hair, wearing street clothes, no glasses or facial hair) and PO4 (30-year-old black male, 5'9"-5'10", 170-180 pounds, short hair, no glasses or facial hair), arrived in an unmarked vehicle. PO Robinson patted down § 87(2)(b)'s waistband and then placed her hands directly into § 87(2)(b)'s pants and jacket pockets. She also squeezed his testicles and pulled up his underwear three to four times. § 87(2)(b) had money in his left pants pocket. He did not have a wallet and did not recall whether he had his keys and cell phone on his person.

PO Robinson frisked and searched § 87(2)(b) and § 87(2)(b) in the same manner. PO Robinson was the only officer who had any physical interaction with the civilians. The officers released everyone without issuing summonses. § 87(2)(b) did not have his identification and did not recall whether the officers obtained identifications from his friends.

Attempts to Contact Civilians

None of the civilians were able to provide a mailing address for § 87(2)(b). On January 19, 2012, § 87(2)(b) provided § 87(2)(b)'s contact phone number. Between January 19, 2012, and January 26, 2012, the CCRB placed six calls to this number. On January 25, 2012, the undersigned investigator made contact with § 87(2)(b) who stated that he was not able to discuss the incident at that time, but would call back. On January 26, 2012, the undersigned investigator left him a voicemail stating that if he did not call back, the investigation would continue without his testimony. To date, § 87(2)(b) has not contacted the CCRB.

NYPD Statements:

Subject Officer: PO STACEY ROBINSON

- *PO Robinson is a § 87(2)(b)-old black female who is § 87(2)(b), and has brown hair and brown eyes.*
- *On December 15, 2011, PO Robinson worked from 5:30 p.m. to 2:05 a.m. with Sgt. Willabus. They were in uniform and were assigned to SNEU in a marked RMP.*

Memo Book

According to PO Robinson's memo book (encl. 28-29), at 11:10 p.m., she made an arrest at Foster Avenue and Seton Place.

CCRB Statement

PO Robinson was interviewed at the CCRB on April 13, 2012 (encl. 30-31). PO Robinson did not remember the incident. She did not recall any of the details surrounding the arrest that she noted in her memo book. PO Robinson did not remember any civilians attempting to interfere in the arrest or stopping a vehicle near the scene of the arrest. She did not recall whether any other officers assisted in the arrest. PO Robinson and Sgt. Willabus remained in the area after the prisoner van removed the defendant. PO Robinson acknowledged that she may have conducted another car stop at the same location, but did not specifically recall. PO Robinson did not recognize photos of § 87(2)(b) or § 87(2)(b).

Subject Officer: SGT. WINSTON WILLABUS

- *Sgt. Willabus is a § 87(2)(b)-old black male who is § 87(2)(b), and has black hair and brown eyes.*
- *On December 15, 2011, Sgt. Willabus worked from 5:15 p.m. to 2:12 a.m. with PO Robinson. They were in uniform and were assigned to SNEU in a marked RMP.*

Memo Book

According to Sgt. Willabus's memo book (encl. 32-34), PO Foder (white male) and PO Sturman (Hispanic female) were assigned to the prisoner van, and PO Donohue (white male) and PO Lobosco (Hispanic male) were assigned to the observation post. At 11:10 p.m. there was an arrest at Foster Avenue and Seton Place.

CCRB Statement

Sgt. Willabus was interviewed at the CCRB on April 13, 2012 (encl. 35-36). On December 15, 2011 at 11:10 p.m., Sgt. Willabus and PO Robinson, who were working a SNEU set, apprehended an individual named § 87(2)(b) identified by the CCRB as § 87(2)(b) at Seton Place and Foster Avenue in Brooklyn. The observation post had transmitted the description of the defendant and Sgt. Willabus stopped the defendant's vehicle. While § 87(2)(b) was being arrested, a four-door sedan occupied by four individuals stopped in the middle of the street about 10 feet away from the officers. The occupants tried to get § 87(2)(b) attention by yelling towards him. Sgt. Willabus told the driver to move along. After 30-60 seconds, the vehicle left. The prisoner van responded and removed § 87(2)(b). No other units responded to the scene. Sgt. Willabus never saw this vehicle again. PO Robinson did not have any interaction with the occupants of § 87(2)(b)'s vehicle. Neither Sgt. Willabus nor PO Robinson stopped § 87(2)(b)'s vehicle. Sgt. Willabus did not recognize color photos of § 87(2)(b) and § 87(2)(b).

Subject Officer: PO JONMICHEL LOBOSCO

- PO Lobosco is a § 87(2)(b)-old light-skinned Hispanic male who is § 87(2)(b) pounds, is bald, and has brown eyes.
- PO Lobosco worked from 5:30 p.m. on December 15, 2011 to 2:05 a.m. on December 16, 2011 with PO Donohue. They were in plainclothes and were assigned to the SNEU observation post on foot.

Memo Book

According to PO Lobosco's memo book (encl. 37-38), there was an arrest at 11:10 p.m. with no location noted.

CCRB Statement

PO Lobosco was interviewed at the CCRB on June 14, 2012 (encl. 39-40). On December 15, 2011 at 11:15 p.m., PO Lobosco notified PO Robinson and Sgt. Willabus of a drug transaction that he observed. PO Robinson and Sgt. Willabus arrested the subject. PO Lobosco did not observe the apprehension. He did not see any interaction between Sgt. Willabus, PO Robinson, and any civilians on the date of the incident. PO Lobosco did not recognize color photos of § 87(2)(b) or § 87(2)(b).

NYPD Documents

Roll Call

According to the corresponding roll call (encl. 41-46), the only other black male sergeant who was working at the time of the incident was Sgt. Darren King, § 87(2)(b).

There were no other black female officers who were partnered with a sergeant. The tour of the Impact officers ended at 10:35 p.m., which was before the incident.

Arrest Report

According to the corresponding arrest report (encl. 58), § 87(2)(b) was arrested on December 15, 2011, at 11:10 p.m. at Seton Place and Foster Avenue. PO Robinson was the arresting officer.

Name/Warrant Checks

According to checks performed by MISD (encl. 47-50), there were no warrant checks conducted for § 87(2)(b) or § 87(2)(b) on the date of the incident.

Stop and Frisk Reports

According to the index of stop and frisk reports (encl. 51-55), there were no stop and frisk reports generated in relation to this incident.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 8, 2012 with regard to the incident (encl. 67).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

(b) (7)(C),
[REDACTED]
[REDACTED]

(b) (7)(D)
[REDACTED]
[REDACTED]
[REDACTED]

- [REDACTED] [REDACTED]

- [REDACTED] [REDACTED]
[REDACTED].

Civilian CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and the first complaint in which § 87(2)(b) and § 87(2)(b) are victims (encl. 5-7).

Subject Officer CCRB Histories

- PO Robinson has been a member of the service for eight years and there are no substantiated CCRB allegations against her (encl. 2).
- Sgt. Willabus has been a member of the service for seven years and there is one substantiated CCRB allegation against him (encl. 3-4):
 - In CCRB #200700641, the Board substantiated an allegation that Sgt. Willabus detained an individual. The Police Department was unable to prosecute the case.

Conclusion

Identification of Subject Officers

PO Robinson was § 87(2)(b) § 87(2)(b) arresting officer, and she acknowledged making the arrest and then remaining in the area after the incident. § 87(2)(b) § 87(2)(b) reported that the incident occurred at the same intersection as § 87(2)(b) § 87(2)(b) arrest. Additionally, the civilians identified the two involved officers as a black female police officer and a black male sergeant. The description that the civilians provided for Sgt. Willabus was consistent with Sgt. Willabus's appearance. Sgt. King, the only other black male sergeant who was on duty, is significantly shorter than Sgt. Willabus. Although the black female was described as 5'9"-5'10", there were no other black female police officers who were partnered with a sergeant at the time of the incident. § 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g) § 87(2)(g)

§ 87(2)(g), § 87(4-b)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Sgt. Winston Willabus supervised the stop of the car in which § 87(2)(b) and an individual were occupants.

Allegation B – Force: PO Stacey Robinson used physical force against § 87(2)(b) and § 87(2)(b)

Allegation C – Discourtesy: PO Stacey Robinson spoke obscenely to § 87(2)(b)

Allegation D – Abuse of Authority: PO Stacey Robinson frisked § 87(2)(b) and an individual.

Allegation E – Abuse of Authority: PO Stacey Robinson searched § 87(2)(b) and an individual.

Allegation F – Abuse of Authority: PO Stacey Robinson threatened to arrest § 87(2)(b)

Allegation G – Abuse of Authority: Sgt. Winston Willabus supervised the search of the car in which § 87(2)(b) and an individual were occupants.

It was alleged that PO Robinson stopped § 87(2)(b)'s car, used profanity towards § 87(2)(b), frisked and searched the civilians, threatened to arrest § 87(2)(b) and searched § 87(2)(b)'s vehicle. § 87(2)(b) stated that PO Robinson kicked § 87(2)(b) causing him to scream. § 87(2)(b) stated that PO Robinson pushed him as he walked to the rear of the car, causing him to scream, and then kicked his feet apart in order to frisk him. § 87(2)(b) and § 87(2)(b) both alleged that PO Robinson grabbed their testicles as a use of force. Sgt. Willabus recalled a car stopping during the apprehension of § 87(2)(b) but denied having any interaction with him or any of his passengers. PO Robinson did not remember seeing § 87(2)(b) or his passengers at all. § 87(2)(g)

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date